

CONFIDENTIAL — HR INVESTIGATION FILE

AWATERE DISTRICT COUNCIL

Witness Statement in the matter of Ferguson v Kellogg

Witness	Angela Michelle Torres
Position	Senior Planner, District Planning Team
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Interview date	26 February 2026
Interviewer	Sarah Mitchell, HR Manager
File reference	HR-INV-2026-018 / WS-02

Declaration

I, Angela Michelle Torres of 27 Kowhai Street, Awatere 4310, a Senior Planner employed by Awatere District Council, make this statement knowing that it will be used for the purposes of an internal HR investigation under the Council's Positive Workplace Policy. The matters recorded are true to the best of my knowledge and belief.

Background

I have been employed by Awatere District Council since August 2016. I report directly to Priya Sharma and work in a team that includes Helen Ferguson (my immediate team leader) and David Kellogg (a peer in terms of grade but a senior technical lead). I have known Mr Kellogg professionally for approximately seven years and Ms Ferguson for about four.

Incident — 17 November 2025 team meeting

During our weekly team meeting Mr Kellogg interrupted Ms Ferguson while she was presenting the consents pipeline update. His words, as best I can recall, were: "Honestly Helen, if you actually understood s104 you'd know this is nonsense." Ms Ferguson did not respond in the meeting. After the meeting I spoke with Ms Ferguson in the tearoom and she was visibly upset. I recorded a brief file note on my work phone the same afternoon (screenshot available on request).

Incident — 11 February 2026

I was present in the open-plan area outside Ms Ferguson's office on the morning of 11 February 2026. Junior planner Jonathan Briggs was also there, seated at his desk opposite mine. Mr Kellogg approached Ms Ferguson at her office door. His voice was raised sufficient that I could clearly overhear. The relevant part of what he said, as I recall it, was: "you're out of your depth Helen — let's be honest, you got this job because they needed a woman on the panel." I noted at the time that Ms Ferguson went pale and did not respond. Mr Briggs made eye contact with me. I recorded

the statement in an email to myself from my work account at 11:17am that day (attached as Appendix A).

Broader context (offered voluntarily)

I wish to add that Mr Kellogg's conduct towards Ms Ferguson has, in my observation, been different in tone from his conduct towards male colleagues of similar seniority. I do not wish to overstate this — he can be curt with anyone — but the pattern is noticeable. I am aware other members of the team hold similar views but they are uncomfortable speaking up. In candour, I would be concerned about retaliation if this statement were shared in full with Mr Kellogg during any disciplinary process, and I ask that my identity be managed carefully. I am also mindful that if this statement were released under LGOIMA it should be withheld under s7(2)(a) as it contains my personal information and that of junior staff who are not parties to the complaint.

Sign-off

Signed: [A M Torres, electronic signature on file]

Date: 26 February 2026

Witnessed by: Sarah Mitchell, HR Manager (sarah.mitchell@awateredc.govt.nz, DDI (06) 759 3428).